

Court No. - 03

Case :- WRIT - C No. - 3164 of 2022

Petitioner :- Mohammad Yaseen

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ganesh Kumar

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, the learned standing counsel for the State-respondents and Sri C.S. Singh, learned counsel for the respondent No.3.
2. This writ petition has been filed praying for the following relief:

“A. Issue a writ, order or direction in the nature of Certiorari quashing the impugned demand notice dated 17.12.2021 (Annexure No.6) issued by the respondent no.3 i.e. Executive Engineer Purvanchal Vidyut Vitran Khand-II, U.P. Power Corporation Limited Basti showing the amount of Rs.1,39,854/- with collection amount of Rs.20,000/-.

B. Issue a writ, order or direction in the nature of Mandamus directing the respondents not to take any coercive action against the petitioner in pursuance of the demand notice dated 17.12.2021 issued by the respondent No.3 i.e. Executive Engineer Purvanchal Vidyut Vitran Khand-II, U.P. Power Corporation Limited Basti.”
3. The petitioner has earlier filed Writ-C No.29398 of 2021 (Mohammad Yaseen vs. State of U.P. and 2 others), which was disposed off by order dated 10.11.2021 with a direction to the respondent to decide the pending objection of the petitioner. Perusal of the objections of the petitioner dated 20.01.2021 filed as Annexure-5 followed by a reminder dated 16.11.2021, both sent through registered post, would reveal that the petitioner had denied the allegation of theft and tried to support his contention by documentary evidences including installation of solar panel with batteries. He also made serious allegations including allegation of bribery against the respondents.
4. Despite the aforesaid objections of the petitioner, the respondent No.3 has passed the impugned order dated 17.12.2021 in a most careless and

arbitrary manner, which is reproduced below:

“कार्यालय अधिशासी अभियन्ता
पूर्णचल विद्युत वितरण निगम लिमिटेड
विद्युत वितरण खण्ड- द्वितीय
निकट रौता चौराहा - बस्ती
CIN-U31200UP2003SGC027461

पत्रांक: 3978 विविखद्वि(ब)/

दिनांक: 17.12.2021

विषय: माननीय उच्च न्यायालय इलाहाबाद, रिट सी-नं० 29398/2021 मो० यासीन बनाम उ०प्र० सरकार दो अन्य के आदेश दिनांकित 10.11.2021 के सम्बन्ध में।

मोहम्मद यासीन पुत्र भोर मोहम्मद,
ग्राम- मटेहनिया,
पोस्ट- कप्तानगंज,
जिला-बस्ती।

उपरोक्त विषयक इस कार्यालय के डिमाण्ड नोटिस पत्रांक-2717 दिनांक- 07.12.2020 का सन्दर्भ ग्रहण करें, जिसके द्वारा आपके विरुद्ध प्रवर्तन दल द्वारा दिनांक 20.10.2020 को आपके परिसर की जांच में विद्युत चोरी के कारण प्राथमिकी दर्ज कराने के परिपेक्ष्य में किए गये राजस्व निर्धारण रुपये- 1,39,854.00 एवं शमन शुल्क रुपये-20,000.00 कुल- 1,59,854.00 की धनराशि जमा करने हेतु अवगत कराया गया था। इस क्रम में आप द्वारा माननीय उच्च न्यायालय, इलाहाबाद में मुकदमा दाखिल (क्राइम नं० 29398/2021) किया गया है। जिसमें माननीय उच्च न्यायालय इलाहाबाद द्वारा दिनांक- 10.11.2021 को आपत्ति को निस्तारित करने हेतु आदेशित किया गया है।

इस सम्बन्ध में आपको पुनः अवगत कराना है कि प्रवर्तन दल द्वारा प्रेषित चेकिंग रिपोर्ट दिनांक-20.10.2020 के अनुसार आपके विरुद्ध विद्युत चोरी की अभियुक्त सही पाया गया है। इस स्थिति में आप द्वारा राजस्व निर्धारण के पुनरीक्षण हेतु प्रेषित प्रत्यावेदन अस्वीकार किया जाता है, एवं आपको निर्देशित किया जाता है कि पत्र प्राप्ति के 10 दिन के अन्दर अपने सम्पूर्ण देय राजस्व निर्धारण रुपये- 1,39,854.00 एवं शमन शुल्क रुपये- 20,000.00 कुल- 1,59,854.00 का भुगतान करना सुनिश्चित करें।

(ज्ञान प्रकाश)
अधिशासी अभियन्ता

पत्रांक: 3978
2021

विविखद्वि(ब)/

तद् दिनांक:

प्रतिलिपि निम्नलिखित को सूचनार्थ एवं आवश्यक कार्यवाही हेतु प्रेषित।

1. जिलाधिकारी महोदया, जनपद-बस्ती।
2. तहसीलदार तहसील-हरैया जिला - बस्ती।

(ज्ञान प्रकाश)

5. Perusal of the impugned order quoted above leaves no manner of doubt that there has been failure on the part of the respondent No.3 to discharge his statutory duty in deciding the objections of the petitioner in accordance with Para 6.8 of the U.P. Electricity Supply Code, 2005. **The objections of the petitioner have not been considered at all by the respondent No.3.** Under the circumstances, we are left with no option except to quash the impugned order dated 17.12.2021 and remit back the matter to the respondent No.3 to decide the objections of the petitioner in accordance with law by a speaking and reasoned order.
6. For the reasons aforesaid **the impugned order dated 17.12.2021 is hereby quashed.** Matter is remitted back to the respondent No.3 with a direction to decide the objections of the petitioner in accordance with law by a speaking and reasoned order, expeditiously, preferably within four weeks from the date of presentation of a certified copy of this order, after affording reasonable opportunity of hearing to the petitioner.
7. **The writ petition is allowed with cost of Rs.5,000/-,** which the respondent No.3 shall pay to the petitioner within two weeks by an account payee bank-draft or cheque. For a period of **six weeks** or till the order is passed by the respondent No.3, whichever is earlier, **no coercive action** shall be taken against the petitioner.

Order Date :- 22.04.2022

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